HILCHOT PESAH - SHULHAN ARUKH

After Bedikat Hames: Bitul, Missed Bedikah & Renting Before Pesah

Hilchot Pesah Siman 434–437

Recap of Previous Classes

Class	Simanim	Topics Covered
Class 1	429–430	30 days before Pesach; month of Nisan; Shabbat HaGadol
Class 2	431–433	Correct time for Bedikat Chametz; the bracha; appointing agents; where to check and various scenarios
Class 3	**434–437**	**After the Bedikah; missed Bedikah; travelling before Pesach; renting/letting a house before Pesach**

Siman 434 — Laws After Bedikat Chametz (דינים הנוהגים תכף אחר הבדיקה)

Contains 4 Se'ifim

Se'if 1 — Securing the Remaining Chametz

Shulchan Aruch: אחר הבדיקה יהא נזהר בחמץ שמשייר להצניעו כדי שלא יצטרך בדיקה אחרת — After completing the Bedikah, one must be careful with the chametz that remains (for eating that night and the next morning) and place it in a **secure location**, so that one does not end up needing to do Bedikat Chametz all over again.

What Constitutes "Secure"?

- Not merely a place where you know where it is — it must be **inaccessible to children and vermin** (mice, rats, etc.).
- Cover it, wrap it, hang it up, or place it in a sealed cupboard.
- The Mishnah Berurah **laments** the common practice of people who check meticulously but then leave the remaining chametz lying around in an open bag — this is incorrect.

When Do You Need to Re-check?

The obligation to redo Bedikat Chametz depends on **two conditions being met simultaneously:**

Condition	Result
Left in a **secure place** + chametz is missing the next morning	**No need to re-check** — assume someone took it; the secure location rules out vermin
Left in an **insecure place** + you **didn't pay attention** to how much chametz you left	**No need to re-check** — since you don't know anything is actually missing
Left in an **insecure place** + you **know for a fact** there is less chametz than you left + **no explanation** for where it went	**Must do full Bedikat Chametz again** — even during the day of Erev Pesach

Why Can't We Assume the Mouse Ate It?

- There is a **vaddai** (certainty) that a piece of chametz existed and is now missing.
- There is only a **safek** (doubt) whether the mouse ate it — perhaps it merely moved it elsewhere in the house.
- **Principle:** אין ספק מוציא מידי ודאי — a doubt cannot override a certainty.
- Therefore, the chametz must be searched for again.

Connection to the Ten Pieces

- This is an additional reason why the ten pieces left out for Bedikat Chametz should each be **less than a kezayit**.
- If a piece goes missing and it was less than a kezayit, these halachot do not apply — there is no obligation to re-check.
- If the pieces were a kezayit or more, a missing piece triggers the full obligation to search again.

Se'if 2 — Bitul (Nullification) After Bedikat Chametz at Night

Shulchan Aruch: Immediately after completing Bedikat Chametz at night, one must perform **Bitul** (nullification) by declaring: "Any chametz (חמירא) in my possession which I have **not seen** and have **not removed** — let it be annulled and become like the dust of the earth."

Why Do We Need Both Bedikah and Bitul?

- **Min HaTorah:** Either Bitul alone or Bedikah alone would suffice.
- **The Chachamim instituted both** as a double safeguard:
- The Bedikah physically removes chametz.
- The Bitul covers anything the Bedikah may have missed.

Why Did the Chachamim Institute Bitul Specifically at Night?

- Ideally, Bitul would make more sense in the morning (to cover the intervening hours).
- However, the Chachamim were concerned a person would **forget** if it were left to the morning.
- Therefore, they instituted it **together with the Bedikah** — immediately after searching, you nullify, so you won't forget.

Critical: The Night-Time Wording Is Different from the Daytime

At night, one says ONLY:

"Any chametz in my possession **which I have not seen and have not removed** — let it be annulled..."

One does NOT say at night: "which I have seen or not seen, which I have removed or not removed" (that is the morning formula).

Why the difference? At night, you are intentionally **keeping chametz** to eat that evening and the next morning. If you were to use the morning formula at night, you would be nullifying **all** your chametz — including what you plan to eat. This creates a serious problem:

- The next morning, when you dispose of the chametz, **it no longer belongs to you** (you already nullified it).
- You cannot fulfil the mitzvah of תשביתו שאור מבתיכם (expelling chametz from your house) on chametz that isn't yours.
- **Common mistake:** People accidentally say the morning formula at night — this is wrong and undermines the morning mitzvah.

The Bitul Must Be in a Language You Understand

Rama: The Bitul must be said in **any language the person understands**.

- The original Aramaic formula (חמירא) was enacted because Aramaic was the vernacular — the Chachamim wanted everyone to understand what they were saying.
- **If you don't understand Aramaic:** Say it in English, Hebrew, or whatever language you understand.
- **If you said it without understanding:** The Bitul is **invalid** — you cannot relinquish ownership of something without understanding that you are doing so.
- **Mishnah Berurah:** Many people recite it thinking it is some kind of prayer or supplication — this does not work at all.
- **Bedi'avad:** If you understand the **general concept** of what you are doing (i.e., you were told by the Rav that this statement relinquishes ownership), even without understanding the specific words, it works after the fact.
- **If Bitul is invalid but Bedikah was done:** You are still fine mi-d'oraita (the Bedikah suffices biblically). But if Bedikah was also not done properly, this is a serious problem — you would go through Pesach actually owning chametz.

Best practice: Say the Bitul in Aramaic (as the Chachamim instituted), and then **repeat it in English** (or your vernacular language).

The Word "Chamira" (חמירא)

- The Aramaic word **חמירא** is unique in that it encompasses **both** chametz (leavened product) and **se'or** (the leavening/rising agent itself).
- **When translating into other languages** (including Hebrew), one must specify both — e.g., "any leaven **or** rising agent."
- These are two distinct Torah prohibitions: (a) actual chametz, and (b) substances that cause leavening. Full details in a later siman.

Se'if 3 — Bitul During the Daytime (Morning)

Shulchan Aruch: The Bitul during the daytime uses the expanded formula:

"Any chametz in my possession — **whether I have seen it or not seen it, whether I have removed it or not removed it** — let it be annulled..."

Night vs. Day Formula Comparison

	Night-Time Bitul	Daytime Bitul
Wording	"Which I have **not** seen and **not** removed"	"Whether I have seen it **or not**, removed it **or not**"
Scope	Only chametz you missed during Bedikah	**All** chametz — including what you previously kept
Status	**Obligatory** (Chachamim's institution)	**Recommended** (good practice; instituted by Rishonim)
If forgotten	Serious problem	Not the end of the world

Timing of the Morning Bitul

- Must be done **while the chametz still belongs to you** — i.e., **before one hour before halachic midday (chatzot)**.
- After one hour before chatzot, the Chachamim revoke your ownership (מפקיע), so Bitul is no longer possible.

Critical: Dispose First, Then Do Bitul

- **Do not do Bitul first thing in the morning "just in case you forget."**
- The correct order: **First dispose/burn** the chametz → **then do Bitul**.
- Reason: You must dispose of chametz **while it still belongs to you** to fulfil the mitzvah of תשביתו. If you do Bitul first, the chametz no longer belongs to you, and the disposal doesn't fulfil the mitzvah.

The Timeline of Chametz Prohibitions

Time	Eating	Owning	Source
Until 2 halachic hours before chatzot	Permitted	Permitted	—
From 2 hours before chatzot	**Forbidden** (rabbinic)	Permitted	Chachamim added extra caution for eating
From 1 hour before chatzot	Forbidden	**Forbidden** (rabbinic)	Chachamim's deadline for ownership
From chatzot (halachic midday)	**Forbidden** (Torah — lav)	**Forbidden** (Torah — lav)	Negative prohibition; lashes
From nightfall of 15 Nisan (Pesach)	**Forbidden** (Torah — karet)	**Forbidden** (Torah — karet)	Most severe; spiritual excision

- **Why the stagger?** The Chachamim were **more concerned about eating** (potentially more severe) than owning, so they added an extra hour's buffer for eating.
- If one accidentally ate or owned chametz only in the rabbinic window (between chatzot and the Chachamim's earlier deadlines), the transgression is only **de-rabbanan**.

Se'if 4 — Appointing an Agent for Bitul

Shulchan Aruch: An agent (shaliach) can perform Bitul on your behalf.

How the Agent Says It

- The agent does **not** say "any chametz **in my possession**."
- The agent says: "Any chametz **belonging to Mr. X / of [person's name]** — let it be annulled..."
- Do not say "chametz in his house" — he may have chametz elsewhere.

Does Appointing an Agent for Bedikah Automatically Include Bitul?

Scenario	Does agency extend to Bitul?
Owner is **in the city / at home**	**No** — we assume you did not extend agency to Bitul
Owner has **left town**	**Yes** — we assume agency extends to Bitul by implication

If the Owner Didn't Appoint Anyone for Bitul

- He should do Bitul **wherever he is** (even in another city/country).
- If he doesn't, **his wife should do it**.

The Problem with the Wife Doing Bitul

- **Question:** How does the wife know whether her husband did Bitul or not? (Historically, before telephones.)
- **Answer:** There is a **chazakah** (presumption) that a person will do it. Nonetheless, it is still **good** (tov) for the wife to do it as well.
- From Talmudic law, a wife's property belongs to her husband — so the question arises whether she can nullify chametz that technically belongs to him. We assume he has given her implied permission to take ownership for the purpose of Bitul.
- **Nowadays:** Simply call and ask. If he says he can't do it, he gives permission, and she does it.
- **In the first instance:** The husband/owner should always do it himself, not rely on his wife.

Why Can't We Use the Principle of Zachin (Acting for Someone's Benefit)?

- **Zachin le-adam she-lo be-fanav** = You can do something for someone's benefit without their knowledge.
- **Question:** Bitul is a merit (zechut) — why can't anyone just do it for him?
- **Answer:** Zachin only works when it is **purely beneficial**. Bitul involves **taking away ownership** of something — that is a chovah (detriment). Since there is an element of loss, Zachin does not apply.
- **Implication:** A Rav cannot do Bitul on behalf of his entire congregation — you cannot unilaterally strip people of their property, even for a mitzvah.

Siman 435 — One Who Did Not Check on the Night of the 14th (דין מי שלא בדק בליל י״ד)

Contains 1 Se'if

Se'if 1 — The Ongoing Obligation of Bedikat Chametz

Shulchan Aruch: The obligation of Bedikat Chametz **never expires**. If missed at the ideal time, it carries forward:

When Missed	What to Do	Bracha?
Didn't check on the **night of the 14th**	Check during the **day of the 14th** (Erev Pesach), as early as possible	**Yes**
Didn't check the **entire day of the 14th**	Check **during Pesach itself** (Chol HaMoed)	**Yes**
Didn't check **during Pesach**	Check **after Pesach**	**No**

Checking During Erev Pesach (Day of the 14th)

- Should be done **as soon as possible** — ideally before the hour preceding chatzot.
- Even if that time has passed, you are still obligated to check throughout the entire day.

The Tannaic Debate — Checking After the Prohibition Kicks In

- **Rabbi Yehudah:** Once you can no longer eat chametz, do not search — concern that you might find something appealing and be tempted to eat it.
- **Chachamim (accepted halacha):** Since the entire purpose of your search is to **expel** chametz, we are not concerned that you will eat what you find while actively trying to remove it.

Checking During Pesach Itself

- **If you did Bitul before Pesach:** Check during **Chol HaMoed** (not on Yom Tov itself). Say a bracha.
- If you find chametz on Pesach, you cannot burn it — **cover it** until you can properly dispose of it.
- **If you did NOT do Bitul before Pesach:** You must check even on **Yom Tov/Chag itself**. When you find chametz, cover it and nullify your ownership of it immediately.

Checking After Pesach — No Bracha

- If you didn't check before or during Pesach, you must check **after Pesach**.
- **No bracha** is said on this post-Pesach check.
- **Reason:** After Pesach, there is no Torah prohibition against having chametz in your house. The purpose is to identify and separate **chametz she-avar alav ha-Pesach** — chametz that remained in Jewish ownership over Pesach — which is **permanently forbidden** for any benefit (eating, selling, etc.).
- You must distinguish between:
- **Old chametz** (from before Pesach) — forbidden forever
- **New chametz** (purchased after Pesach) — perfectly fine

Chametz She-Avar Alav HaPesach (חמץ שעבר עליו הפסח)

- If chametz remained in Jewish ownership throughout Pesach (not sold, not nullified), the Chachamim decreed it is **forbidden permanently** — not just for eating, but for **any benefit**.
- This is a **penalty** (kenas) imposed by the Chachamim.
- **Practical ramification:** Eating at the homes of non-observant Jews immediately after Pesach raises questions — they may not have sold their chametz, meaning their whiskey, bread, etc. from before Pesach would be forbidden. This is a major topic discussed at length in a later siman.

Siman 436 — One Who Travels Before Pesach (דין מי שהולך ממקומו קודם הפסח)

Contains multiple Se'ifim — largely impractical nowadays

Core Principle from the Gemara

Shulchan Aruch: If a person is **travelling before Pesach** and leaving no one at home, and has not appointed an agent:

Scenario	Obligation
Leaving **within 30 days** of Pesach + no one at home + no agent	Must do **Bedikat Chametz the night before departing**
Leaving **before 30 days** of Pesach	No need to check before leaving
Leaving before 30 days **but intends to return before Pesach**	Must check before leaving (concern you'll return too late)

Why This Is Largely Impractical Today

The Shulchan Aruch notes this is **situation-dependent**, and nowadays it is almost impossible to find a case where these halachot apply, because:

1. **Most people leave someone at home** (spouse, children at age of chinuch) — if so, none of this applies; the person at home checks.
2. **Modern communication** — even a single person travelling can phone someone and appoint an agent.
3. **Agency is easy to arrange** — historically, there was even a practice of paying someone to do Bedikat Chametz on your behalf.

Bottom line: If you're travelling, either leave someone at home to check, or appoint an agent by phone. In the rare case where neither is possible, the Gemara's original din applies.

Siman 437 — Renting or Letting a House Before Pesach (דין המשכיר בית לחבירו)

Contains multiple Se'ifim

Se'if 1 — Who Is Obligated to Check: Landlord or Tenant?

Shulchan Aruch: The obligation depends on **who has the keys** at the onset of the night of the 14th.

Scenario	Who checks?
Tenant has completed the rental contract **but does not yet have the keys** on the night of the 14th	**Landlord**
Tenant has received the keys **before** the night of the 14th (even moments before)	**Tenant** — even if he hasn't physically moved in yet
Tenant moves in **after** the night of the 14th but had keys before	**Tenant**

Modern Keyless Entry

- For houses without physical keys (smart locks, screen access, etc.), we go by **when the rental contract takes effect** rather than physical key handover.

Se'if 2 — Renting on the 14th: Can You Assume It's Been Checked?

If you know the landlord is not religious or won't check → the obligation falls upon **you** (the tenant). You cannot live in an unchecked house.

If you can communicate with the landlord → **ask him** whether he checked. Don't rely on a chazakah (presumption) when you can simply find out.

If you cannot communicate with the landlord → you may **assume it has been checked** (based on chazakah), but you must still do **Bitul** yourself.

Staying in someone else's house (not renting):

- If they have given you access and relinquished ownership of contents for Pesach → you would need to check.
- If they have merely allowed you to stay → assume they've handled their own Bedikat Chametz and sale of chametz.
- **Best practice:** Ask whether chametz has been dealt with.

Se'if 3 — Finding Chametz in a Supposedly Checked Rental

Shulchan Aruch: If a landlord told the tenant the house was checked, and the tenant moves in and **finds chametz**:

- The **tenant must check the house** himself (he now has an obligation).
- However, he **cannot void the rental contract** (mekach ta'ut / transaction under false pretences).
- **Reason:** The landlord has not caused the tenant **financial loss** — only imposed a **mitzvah** upon him. Causing someone to need to do a mitzvah is not grounds for voiding a transaction.

Se'if (final) — Who Can Perform Bedikat Chametz

- A **woman** may perform Bedikat Chametz.
- A **child who has reached the age of chinuch** may perform Bedikat Chametz.
- These are considered reliable for the search.

Summary of Key Practical Points

Siman	Key Takeaways
434:1	Secure remaining chametz after Bedikah; if insecure + chametz missing with no explanation → re-check. Leave pieces less than a kezayit.
434:2	Do Bitul immediately after Bedikah at night. Must understand what you're saying — use your own language. Night formula differs from morning.
434:3	Morning Bitul is recommended (not strictly obligatory). Dispose of chametz **first**, then do Bitul. Must be done before 1 hour before chatzot.
434:4	An agent can do Bitul for you. Wife can do it if husband is away. Zachin doesn't apply (involves loss of ownership).
435:1	Bedikat Chametz obligation never expires — carries through Erev Pesach, Pesach itself, and even after Pesach (without bracha). Chametz she-avar alav ha-Pesach is forbidden forever.
436	Travelling before Pesach: check before leaving if within 30 days + no one at home + no agent. Largely impractical today due to communication.
437:1	Landlord vs. tenant obligation: determined by who has the keys on the night of the 14th.
437:2	If renting on the 14th: ask if it's been checked; if you can't ask, assume yes but do Bitul.
437:3	Finding chametz in a "checked" rental: must check, but cannot void the lease.

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